

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: June 10, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Gazca vs. Kia America, Inc.	TENTATIVE RULING: <u>Order to Show Cause re Change of Venue.</u> The Court set this order to show cause hearing regarding the proper venue and potential transfer of this action brought under the Song-Beverly Act. Plaintiffs, relying on <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, contends venue in Orange County is proper based on the general venue provisions set forth in Code of Civil Procedure sections 395.5. <u>Statement of Law</u> Pursuant to Code of Civil Procedure section 395(a), "the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action." Additionally, "if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless